



POLICE DEPARTMENT CITY OF NEW YORK

July 6, 2017

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Delores Mitchell
Tax Registry No. 927657
Highway Unit 2
Disciplinary Case No. 2016-15893

Charges and Specifications:

1. Said Police Officer Delores Mitchell, on or about and between April 17, 2015 and April 19, 2015, failed to safeguard her Kahr K-9 firearm.
P.G. 204-08, Page 2, Paragraph 7 - FIREARMS REGULATIONS

Appearances:

For the Department: Cindy Espinosa, Esq.
Department Advocate's Office
One Police Plaza
New York, NY 10038

Javier Seymore, Esq.
Department Advocate's Office
One Police Plaza
New York, NY 10038

For the Respondent: Michael Martinez, Esq.
Worth, Longworth & London, LLP
111 John Street – Suite 640
New York, NY 10038

Hearing Date:

June 6, 2017

Decision:

Respondent, having plead Guilty, is found Guilty.

Trial Commissioner:

ADCT Nancy R. Ryan

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on June 6, 2017. Respondent, through her counsel, entered a plea of Guilty to the subject charges and testified in mitigation of the penalty. A stenographic transcript of the mitigation record has been prepared and is available for the Police Commissioner's review.

DECISION

After reviewing the evidence presented at the hearing, and assessing the credibility of the witnesses, I find Respondent, having pleaded Guilty, is Guilty as charged.

SUMMARY OF EVIDENCE IN MITIGATION

The Department has requested that Respondent receive a penalty of the forfeiture of 20 vacation days. The Respondent, while pleading Guilty to the Specification, asks that the penalty be mitigated based on several factors. These include her contention that even though Respondent did not know where her gun was for the time period as charged from April 15 to April 17, 2015, it was in a safe location. Respondent also contends that during this time period she was experiencing [REDACTED] which she appropriately dealt with by calling the [REDACTED]. This call is what directly led to the discovery that one of her guns was not in her police locker where she believed it was.

Respondent testified that she has been a member of the Department for 16 ½ years, including approximately 12 ½ years assigned to the Highway Unit. (Tr. 8) On April 17, 2015, she was assigned to Highway 2, in Brooklyn. She was having, "a little [REDACTED]" so she called [REDACTED] on the morning of the 17th to get some advice from them on what she should do with her firearms. She owned three guns at the time. She didn't want her [REDACTED] to be able to make any false claims that

she was threatening [REDACTED] with a firearm during their escalating arguments. (Tr. 11-12) A detective from the [REDACTED] picked her up and drove her to her command so that Respondent could voluntarily give her guns to the [REDACTED] detective. When she saw that one of the guns, a Kahr 9, was not in her locker where she thought it would be, she immediately told the [REDACTED] detective. Respondent admitted that at that point she was adamant she never takes her firearms home. Respondent re-searched the locker and the detective also searched the locker. When the searches were not successful, they reported the missing firearm to the desk. (Tr. 13-14, 20) Respondent voluntarily turned over her other two firearms. (Tr. 17)

After being interviewed at the command, Respondent finally returned home on the 18th. (Tr. 14, 17) On the 19th, she remembered that in order to accommodate a new female officer about a month earlier, she had emptied one of her command lockers and brought home some of her police gear and paperwork, which she was under a duty to safeguard even when it wasn't kept at the command. The items were in boxes, but the Kahr 9 was in a backpack. When she brought those items home, she placed all of them in a locked steel shed in her backyard. The Kahr 9 was still in a gun box, in the backpack, when she placed it in the shed. (Tr. 15-16, 22-23, 27-28) Respondent testified that no one besides her had access to the shed, since she had the only key to the padlock on the shed. (Tr. 25, 27) On the 19th, Respondent checked the shed and found the Kahr 9. She immediately informed her resident precinct, the 113, and her captain from Highway Unit, who responded and vouchered the gun. (Tr. 16-17)

Respondent testified that she was modified for six months but after a conversation with [REDACTED], she was placed back on full duty and given back two firearms.

Respondent further testified that she has learned to make sure she knows where her firearms are at all times. (Tr. 18)

On cross-examination, Respondent acknowledged that the back yard, where her shed is, is unfenced. (Tr. 21)

PENALTY RECOMMENDATIONS

In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). Respondent was appointed to the Department on October 10, 2000. Information from her personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

As an initial matter, the court found Respondent, based on her demeanor at trial and the straightforward nature of her responses, even when they were admissions to the charged misconduct, to be a credible witness and therefore credits her account of what happened with her gun.

While the Department has commented in summation that Respondent left her firearm in a shed and forgot about it for a month, it is important to note that what is charged here is that Respondent left her firearm unsecured for a period between two days, April 17-19, 2015. The court limits its review to the charges as submitted.

While the court has reviewed precedent for missing firearms cases and notes that while the penalty of the loss of twenty vacation days has been imposed in cases, there are also cases where lower penalties have been imposed. For example, a fourteen year police officer, with no prior formal disciplinary history, negotiated a penalty of the loss of ten (10) vacation days for failing to safeguard his firearm, resulting in the theft of said firearm. Respondent left the firearm in a locked desk drawer at his home before leaving

his residence for the evening. When he returned the next day, he discovered his front door was unlocked and his rear door was kicked in. His firearm and a gold chain were missing. Respondent immediately notified local police. The Police Commissioner disapproved the original negotiated settlement of twenty vacation days. Disciplinary Case No. 2015-13876, signed January 28, 2016. In another case, a twenty-five year police officer, with no prior disciplinary history, negotiated a penalty of fifteen (15) vacation days for failing to safeguard her firearm, resulting in loss of said firearm. Respondent misplaced her firearm, made the requisite notifications and then located the firearm two days later at her residence where it had fallen behind a drawer. Disciplinary Case No. 2015-14294, signed November 11, 2015. In a very recent case, a four year police officer negotiated a plea of the loss of ten vacation days for failing to safeguard his weapon. Respondent left his firearm in his nightstand and it was stolen during a home burglary. The gun was recovered two years later. Disciplinary Case 2016-15745, signed May 22, 2017.

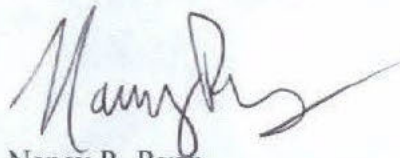
In Respondent's case, the gun was not taken by anyone, nor was it even available to anyone other than Respondent. While she readily admitted it was improper to not know where her gun was for the two days, as charged, and has taken full responsibility for her actions, the gun in question was in fact in a locked area on her premises during the period charged. Respondent also importantly testified that she has learned from this experience, the importance of knowing where her guns are at all times.

I would recommend that it also be taken into consideration that Respondent's failure to remember what she had done with her gun occurred during a [REDACTED] [REDACTED] period in her life, and that she took completely appropriate steps to address the

situation. She voluntarily gave up access to her firearms during that time by [REDACTED] from, and surrendering her firearms to, the [REDACTED]. The fact that the gun was missing, only came to light because Respondent was [REDACTED]. I recommend that the penalty reflect some acknowledgement of this appropriateness of her actions.

Based on the above, I recommend a penalty of the loss of ten vacation days in this case.

Respectfully submitted,



Nancy R. Ryan
Assistant Deputy Commissioner Trials

APPROVED

OCT 25 2017

JAMES P. O'NEILL
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER DELORES MITCHELL
TAX REGISTRY NO. 927657
DISCIPLINARY CASE NO. 2016-15893

Respondent was appointed to the Department on October 10, 2000. On her last three annual performance evaluations, beginning with the most recent, Respondent received overall ratings of 3.5 "Highly Competent/Competent," 4.0 "Highly Competent," and 3.5 "Highly Competent/Competent."

[REDACTED]

Respondent has no prior formal disciplinary record.

For your consideration.

Nancy R. Ryan
Assistant Deputy Commissioner Trials